

shall be liable on summary conviction to a penalty not exceeding five pounds.

8.—(1) Offences under this Act may be prosecuted, and penalties recoverable under this Act may be recovered, in a summary manner. Prosecution of offences.

(2) All penalties recovered under this Act shall, notwithstanding any provision in any other Act, be paid to the Department, and shall be applied in aid of the expenses of the Department in the execution of this Act.

9. In this Act, unless the context otherwise requires,—

Interpretation.

The expression “noxious weed” means any plant declared by an order of the Department under this Act to be a noxious weed in any county to which the order applies:

The expression “agricultural seeds” means the seeds of grass, clover, flax, cereals, turnips, rape, mangel, carrots, cabbage, or parsnips:

The expression “occupier” shall be deemed to include—

(a) in the case of any public road, the county or district council by whom the road is maintained;

(b) in the case of any land the occupier of which (being an individual) is absent from Ireland, any agent or other person entrusted with the management of the land on his behalf.

10. This Act shall apply to Ireland only, and shall come into operation on the first day of January nineteen hundred and ten, and may be cited as the *Weeds and Agricultural Seeds (Ireland) Act, 1909.* Extent, commencement, and short title.

CHAPTER 32.

An Act to empower Local Authorities in Ireland to strike a Rate for advertising Health Resorts and Watering-Places. [25th November 1909.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

1. From and after the passing of this Act, the council of any urban or rural district, or the commissioners of any town not being an urban district, may advertise the advantages and amenities of the district, or any part of it, or of the town, as a health resort or watering-place, by the insertion of advertisements in newspapers not published within the area of charge, or by placards or otherwise, as they may see fit, and may expend money for the purpose, provided that the sums so expended shall not in any one financial year exceed the

Power of local authority to strike a rate for advertisement.

amount that could be raised by a rate of one penny in the pound on the rateable value of the district or town.

Expenses.

2. The expenses incurred under this Act by a district council shall be defrayed out of any rate or fund applicable to the purposes of the Public Health (Ireland) Acts, 1878 to 1907, in like manner as if they had been incurred for the purposes of those Acts, and the expenses incurred under this Act by the commissioners of a town not being an urban district shall be raised by means of the rate levied by them under section sixty of the Towns Improvement (Ireland) Act, 1854, but shall be excluded in ascertaining any limit imposed by law upon such rate.

17 & 18 Vict.
c. 103.

Short title and
extent.

3. This Act may be cited as the Health Resorts and Watering-Places (Ireland) Act, 1909, and shall apply to Ireland only.

CHAPTER 33.

An Act to extend the Wild Animals in Captivity Protection Act, 1900, to Scotland. [25th November 1909.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

Application of
63 & 64 Vict.
c. 33 to Scot-
land.

13 & 14 Vict. c. 92.
58 & 59 Vict. c. 13.
12 & 13 Vict. c. 92.
17 & 18 Vict. c. 60.

Short title.

1. Section five of the Wild Animals in Captivity Protection Act, 1900, is hereby repealed, and the said Act shall apply to Scotland with the substitution of the Cruelty to Animals (Scotland) Acts, 1850 and 1895, for the Cruelty to Animals Acts, 1849 and 1854.

2. This Act may be cited as the Wild Animals in Captivity Protection (Scotland) Act, 1909.

CHAPTER 34.

An Act to amend the Acts relating to Electric Lighting. [25th November 1909.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

Compulsory
acquisition of
land for gene-
rating sta-
tions.

1.—(1) The Board of Trade may by Provisional Order authorise any local authority, company, or person, who is authorised by the same or any previous Provisional Order or by